

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

ABIGAIL ALCALA,

Petitioner

VS.

SALVADOR ALCALA,

Respondent

) Case Number: FDI-23-798607

) Hearing Date: May 14, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

PETITIONER'S REQUEST FOR THE COURT TO APPOINT EVIDENCE CODE SECTION 730
EXPERTS TO TRACE FUNDS RESPONDENT MAY HAVE MISAPPROPRIATED, VALUE THE
PARTIES' PROPERTIES, AND CONDUCT A BUSINESS VALUATION OF THE PARTIES' CATTLE
RANCHING BUSINESS IN MEXICO FROM PETITIONER'S RFO FILED 9/16/25

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the
Court makes the following findings and orders:

A. Procedural History

- 1) The parties in this matter are Petitioner Abigail Alcala (Wife) and Respondent Salvador Alcala (Husband). The parties married on 6/29/1967. The parties agree their date of separation is on 5/5/2023, for a marriage of 55 years and 11 months. The parties have no minor children in common. Wife is represented by attorney Jane Migachyov. Husband is represented by attorney Jeremy Castro (who substituted into this case on 3/9/2026).
- 2) At the prior 11/25/2025 hearing, the Court partially adjudicated Wife's unopposed Request for Order filed 9/16/2025. The Court:
 - a. Noted that Husband had been served by mail at the address Husband's former attorney listed for Husband (i.e., 226 Goldfinch Way Livermore, CA 94551) in the Amended Substitution of Attorney filed 6/3/2025.

- b. Adopted Wife's guideline temporary spousal support calculation and ordered Husband to pay \$4,650 per month in temporary spousal support effective 9/16/2025;
 - c. Ordered Husband to pay \$11,470 in temporary spousal support arrears for the period 9/16/2025 – 11/30/2025.
 - d. Awarded Wife \$111,162.80 in need-based attorney's fees and costs under Family Code section 2030 for fees incurred to date and for fees incurred through entry of Judgment and ordered Husband to pay this amount to Wife no later than 1/31/2026;
 - e. Ordered Husband to serve his full and complete Preliminary Declaration of Disclosure no later than 12/31/2025;
 - f. Ordered Husband to pay \$623.09 in attorney's fees sanctions under Family Code section 2107(c) and \$10,000 in attorney's fees sanctions under Family Code section 271, to be paid no later than 12/31/2025;
 - g. Reserved jurisdiction over Wife's request for the Court to award her 100% of various assets that Wife claims Husband misappropriated under Family Code section 1101(h);
 - h. Ordered Husband to transfer \$50,000 from community bank accounts to Wife no later than 12/31/2025;
 - i. Set a future hearing date of Tuesday, 1/27/2026 at 9:00 AM in Dept. 404 on Wife's request for the Court to appoint Evidence Code section 730 experts to trace funds Husband may have misappropriated, value the parties' properties, and conduct a business valuation of the parties' cattle ranching business in Mexico.
 - j. Ordered Wife to file and serve a declaration identifying which individuals she would like this Court to appoint as experts in this matter, their hourly rate, and their estimate for how much they believe they will incur to perform the requested tasks. Wife was also ordered to outline what qualifications and experience she believes renders the expert appropriate for appointment, and how she believes the cost of the experts should be allocated between the parties.
- 3) On 12/22/2025, Wife's attorney filed a declaration asking the Court to appoint the following individuals to perform the following tasks. Wife asks that the Court bear the cost of all three

1 experts' work because he has absconded with \$800,000+ of the community's funds and he can
2 afford to pay for the fees.

3 a. Nick G. Tarlson, CPA to calculate the overall asset / debt division and equalization. Mr.
4 Tarlson requires a \$5,000 retainer. No estimate is provided for the cost of the assignment
5 "because of uncertainty concerning the complexity and availability of the data, potential
6 developments in discovery and efforts toward settlement and trial preparation, all of
7 which in his experience are highly volatile and case-specific."

8 b. Fernando Gomez-Martin of Valuadores Profesionales Altenos, SA de CV (VALRPOA)
9 to appraise nine properties in Mexico. Mr. Gomez-Martin estimates that the appraisal for
10 each property will cost "\$3,000 Mexican Pesos."

11 c. Martin Santos to appraise three properties in San Francisco. Wife states that Mr. Santos
12 charges \$1,500 "for a court-appointed appraisal."

13 4) Per the Proof of Service filed 12/22/2025, Wife's attorney's declaration was mailed to Husband at
14 226 Goldfinch Way Livermore, CA 94551 on 12/22/2025.

15 5) On 1/26/2026, the Court issued a Tentative Ruling to appoint Fernando Gomez-Martin and
16 Martin Santos as Evidence Code section 730 experts to perform the tasks requested by Wife.
17 However, the Court tentatively determined it would not be appropriate to appoint Nick Tarlson as
18 an Evidence Code section 730 expert to calculate overall assets / debt division and equalization
19 due to Wife's adversarial theory that Husband misappropriated community funds. The Court
20 tentatively determined it "would not be appropriate for a joint neutral expert to conduct and
21 review discovery to investigate that theory and opine on it," and that Wife could hire Mr. Tarlson
22 has her personal expert.

23 6) At the 1/27/2026 hearing, Wife and her attorney appeared and Husband appeared in pro per.
24 Husband stated he did not review the Tentative Ruling and was not ready to proceed. The Court
25 agreed to continue the hearing to give Husband additional time to hire an attorney, continued the
26 hearing to 3/26/2026 (which was later continued to 5/14/2026 by agreement of the parties), and
27 ordered the parties to meet and confer in advance of the next hearing date.

28 7) On 5/7/2026, Wife's attorney filed an Update Declaration. In addition to reiterating her requests
29 that the Court appoint Fernando Gomez-Martin and Martin Santos as Evidence Code section 730

1 experts, Wife requests that the Court re-consider appointing Nick Tarlson as an Evidence Code
2 section 730 expert. Wife's attorney states: "Having Mr. Tarlson address the issues in this case,
3 including misappropriation of funds is appropriate... because the determination that there is a
4 breach of fiduciary duty is a legal one that only the attorneys can argue. The decision whether
5 there was a breach of fiduciary duty rests firmly with the Court. The only role Mr. Tarlson would
6 have is to objectively and neutrally evaluate records presented by both sides to trace relevant
7 transactions and report back to counsel and the Court. He would not make the ultimate conclusion
8 whether there was a breach of fiduciary duty." Wife's attorney states Mr. Tarlson estimated that
9 forensic fees could be between \$20,000 - \$40,000 given the different facets of the case.

10 8) Wife's attorney states that meet and confer efforts with Husband's attorney ended in failure.
11 Wife's attorney states, "He refused to state that his client would make ANY of the payments
12 ordered in November 2025. I asked him about the disclosures and he said he was '75%' done. I
13 have yet to see any disclosures a week later. On April 27, 2026 I presented to counsel the January
14 2026 Citibank and First Federal Credit Union documents attached as exhibits here and asked for
15 confirmation by the end of the week that his client would pay the balances to my client – he never
16 did so. Having 730 experts would force counsel and their clients to promptly comply with
17 document and information requests. But for Husband's stonewalling, this divorce would have
18 ended long ago. My client is elderly and indigent. She simply wants to get what she is entitled to
19 and move on with her life."

20 9) On 5/11/2026, Husband's attorney filed a Status Update. Husband's attorney states that Husband
21 is working to restore Wife's health insurance coverage, is working on his financial disclosures,
22 and is preparing a counter-settlement offer to Wife's settlement proposal. Husband's attorney also
23 states that the current spousal support and attorney's fees orders were based on incorrect
24 information and Husband is working to provide accurate and complete information to the Court.
25 Husband states that "the order for payment expert fees was likewise made without proper
26 consideration of Respondent's actual income and financial capacity and based in part on false
27 information provided by Petitioner." On this point, the Court notes there has been no Court order
28 appointing any expert in this matter or order requiring Husband to pay any expert fees. Husband
29 asks the Court to: (a) continue any currently scheduled hearing to allow the parties adequate time

1 to complete disclosures and finalize settlement discussions; (b) stay the existing spousal support
2 and attorney's fees order pending further proceedings "as Respondent's income has not been
3 accurately represented in prior submissions and will be properly reflected in the forthcoming
4 financial disclosures"; and (c) stay any outstanding fees/sanctions payment, to be addressed and
5 resolved at the time of the settlement conference.

6 **B. Findings and Order**

- 7 1) The Court hereby appoints Fernando Gomez-Martin as the Court's Evidence Code section 730
8 expert to appraise the parties' nine properties in Mexico. Within 10 days of any request by Mr.
9 Gomez-Martin for documents, the parties shall provide such documents to Mr. Gomez-Martin.
10 Effective immediately, all parties must be CC'd on all communications with Mr. Gomez-Martin.
11 The Court authorizes Mr. Gomez-Martin to charge "\$3,000 Mexican Pesos" per property to be
12 appraised. If Mr. Gomez-Martin requires additional fees beyond this amount, the parties may
13 return to Court for this request.
- 14 2) The Court hereby appoints Martin Santos as the Court's Evidence code section 730 expert to
15 appraise the parties' three properties in San Francisco. Within 10 days of any request by Mr.
16 Santos for documents, the parties shall provide such documents to Mr. Santos. Effective
17 immediately, all parties must be CC'd on all communications with Mr. Santos. The Court
18 authorizes Mr. Santos to charge \$1,500 per property to be appraised. If Mr. Santos requires
19 additional fees beyond this amount, the parties may return to Court for this request.
- 20 3) Husband shall pay any invoices presented by Mr. Gomez-Martin and Mr. Santos within 10 days
21 of receipt of such invoices. The Court's jurisdiction to reallocate the cost of these experts is
22 reserved for trial / final Judgment.
- 23 4) The Court finds that it is premature to appoint Nick Tarlson as an Evidence Code Section 730
24 expert to calculate overall assets / debt division and equalization before Husband has served his
25 Preliminary Declaration of Disclosure, and Wife's request to appoint Nick Tarlson as an expert in
26 this matter is continued to **Thursday, 8/13/2026 at 9:00 AM in Dept. 404**. The Court previously
27 ordered Husband to serve his Preliminary Declaration of Disclosure by 12/31/2025. Husband has
28 yet to do so, although his attorney states that it is almost completed. Husband shall serve his
29 Preliminary Declaration of Disclosure forthwith. After Husband serves his Preliminary

1 Declaration of Disclosure, the parties shall continue to meet and confer. If the parties are unable
2 to reach an agreement, at least 20 calendar days prior to the next hearing date, oth parties shall
3 file updated and fully completed Income and Expense Declarations. At least 10 calendar days
4 prior to the next hearing date, both parties shall file and serve update declarations addressing the
5 narrow issue of whether the Court should appoint Nick Tarlson as an Evidence Code Section 730
6 expert to calculate overall assets / debt division and equalization and how Mr. Tarlson's fees
7 should be paid.

- 8 5) The Court's jurisdiction to award attorney's fees sanctions due to Husband's failure to serve his
9 Preliminary Declaration of Disclosure by statutorily and Court-provided deadlines is reserved.
- 10 6) Husband's requests made in his attorney's declaration filed 5/11/2026 to stay the enforcement of
11 any orders requiring payment of spousal support, attorney's fees, and sanctions are denied
12 without prejudice as these issues are not currently before the Court.
- 13 7) Wife's attorney shall prepare the Findings and Order After Hearing.
- 14 8) **Preparation of Order:** If you are directed by the court to prepare the order after hearing – within
15 10 calendar days of the hearing you must either: (a) Serve the proposed order to the other
16 party/counsel for approval, and follow the procedures set forth in CA Rules of Court, Rule
17 5.125(c), or (b) If the other party did not appear or the matter was uncontested, submit the
18 proposed order after hearing directly to the court. Failure to submit the order after hearing within
19 10 days may allow the other party to prepare a proposed order and submit it to the court in
20 accordance with CA Rules of Court, Rule 5.125(d).
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